TITLE 34—NAVY

Chapter I—Department of the Navy

PART 9—EXECUTIVE ORDERS, PROCLAMATIONS, AND PUBLIC LAND ORDERS APPLICABLE TO THE NAVY

DISCONTINUANCE OF SAN CLEMENTE ISLAND NAVAL DEFENSIVE SEA AREA AND REVOCATION OF LAND WITHDRAWAL FOR NAVAL RADIO STATION IN ALASKA

CROSS REFERENCE: For orders affecting the tabulations contained in §§ 9.3 and 9.5, see Executive Order 9894 under Title 3, *supra*, discontinuing the San Clemente Island Naval Defensive Sea Area, and Public Land Order 410 under Title 43, *infra*, revoking Executive Order 2533 which withdrew public land in Alaska for use of the Navy Department as a naval radio station.

TITLE 36—PARKS AND FORESTS

Chapter III—Corps of Engineers, War Department

PART 311—PUBLIC USE OF CERTAIN RESERVOIR AREAS

SARDIS RESERVOIR AREA, LITTLE TALLAHATCHIE RIVER, MISSISSIPPI

The Secretary of War having determined that the use of the Sardis Reservoir Area, Little Tallahatchie River, Mississippi, by the general public for boating, swimming, bathing, fishing, and other recreational purposes will not be contrary to the public interest and will not be inconsistent with the operation and maintenance of the reservoir for its primary purposes, hereby prescribes rules and regulations pursuant to the provisions of section 4 of the Act of Congress approved December 22, 1944 (58 Stat. 889) as amended by the Flood Control Act of 1946 (60 Stat. 641), for the public use of Sardis Reservoir Area, Mississippi, by adding § 311.1 (i), Title 36, Chapter III, Part 311 of the Code of Federal Regulations as follows:

§ 311.1 *Areas covered.* * * *

(i) Sardis Reservoir Area, Little Tallahatchie River, Mississippi.

[Regs. 20 Aug. 1947—ENGWR] (Sec. 4, 58 Stat. 889 as amended, 60 Stat. 641; 16 U. S. C. Sup., 460d)

[SEAL] EDWARD F. WITSELL,
Major General,
The Adjutant General.

[F. R. Doc 47-8674; Filed, Sept. 24, 1947; 8:52 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

PART 162—LIST OF ORDERS CREATING AND MODIFYING GRAZING DISTRICTS

NEVADA GRAZING DISTRICT NO. 3

CROSS REFERENCE: For an addition to the tabulation contained in § 162.1, see F. R. Document 47-8653 under Department of the Interior in the Notices section, *infra*, modifying Nevada Grazing District No. 3.

Appendix—Public Land Orders

[Public Land Order 410]

ALASKA

REVOKING EXECUTIVE ORDER 2533 OF FEBRUARY 20, 1917, WITHDRAWING PUBLIC LAND FOR USE OF THE NAVY DEPARTMENT AS A NAVAL RADIO STATION

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 2533 of February 20, 1917, withdrawing the hereinafter described public land for the use of the Navy Department as a Naval Radio Station, is hereby revoked.

The jurisdiction over and use of such land granted the Navy Department by Executive Order 2533 shall cease upon the date of the signing of this order. Thereupon, the jurisdiction over and administration of such lands shall be vested in the Department of the Interior, and any other Department or agency of the Federal Government according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on November 19, 1947. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to settlement application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from November 19, 1947, to February 18, 1948, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead laws, or the small tract act of June 1, 1938, (52 Stat. 609, 43 U. S. C. sec. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. secs. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from October 31, 1947, to November 19, 1947, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on November 19, 1947, shall be treated as simultaneously filed.

(c) *Date for non-preference right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on February 19, 1948, any of the lands remaining unappropriated shall become subject to such settlement application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference right filings.* Applications by the general public may be presented during the 20-day period from January 31, 1948, to February 19, 1948, inclusive, and all such applications, together with those presented at 10:00 a. m. on February 19, 1948, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, Anchorage, Alaska, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 65 and 66 of Title 43 of the Code of Federal Regulations and applications under the small tract act of June 1, 1938, shall be governed by the regulations contained in Part 257 of that title.

Inquiries concerning these lands shall be addressed to the District Land Office, Anchorage, Alaska.

The lands affected by this order are described as follows:

SEWARD MERIDIAN

T. 1 S., R. 1 W.,
Sec. 2, lot 3.

The area described contains 38.06 acres.

The land is located at the head of Resurrection Bay in Prince William Sound and is on the delta of the Salmon and Resurrection Rivers. The tract is level, but is backed one-half mile to the northwest by steep mountains. The cover consists mostly of small white and black spruce.

OSCAR L. CHAPMAN,
Acting Secretary of the Interior.

SEPTEMBER 17, 1947.

[F. R. Doc. 47-8651; Filed, Sept. 24, 1947; 8:46 a. m.]

[Public Land Order 411]

IDAHO

REVOKING PUBLIC LAND ORDER NO. 179 OF OCTOBER 1, 1943, WITHDRAWING PUBLIC LANDS FOR USE OF THE WAR DEPARTMENT AS AN AIR-TO-GROUND GUNNERY RANGE

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Public Land Order No. 179 of October 1, 1943, withdrawing the public lands in the hereinafter-described areas for the use of the War Department as an air-to-ground gunnery range, is hereby revoked.

The jurisdiction over and use of such lands granted to the War Department by Public Land Order No. 179 shall cease upon the date of the signing of this order. Thereupon, the jurisdiction over